

SEX OFFENDER REGISTRATION

Sex Offenders Registration Act 2004

Section 7 – Registrable Offences

- (1)(a) Class 1 offence: located in Schedule 1 – REGISTRABLE OFFENCE (i.e.. mandatory)
- (1)(b) Class 2 offence: located in Schedule 2 – REGISTRABLE OFFENCE (i.e.. mandatory)
- (c) An offence that results in an order – DISCRETIONARY
i.e. a class 3 or 4 offence OR an offence not listed in a schedule

Section 8 – Class 3 and Class 4 Offences

A person can only be placed on the register for a Class 3 or Class 4 offence if they are a “serious sexual offender” as defined in s 8(3) –

if they have been sentenced by a Court for 2 or more offences listed in any schedule before or after the commencement of this Act (1st October 2004)

Note: the 2 offences can have been heard together in the one hearing or different hearings

Note: the first offence, which by itself, would not make them a serious sexual offender will still be counted for registration purposes when they are later found to satisfy the definition

Note: serious sexual offender definition is different to the definition in the *Sentencing Act 1991*

Section 11 – Sex Offender Registration Order (discretionary)

Section 11(1) – if the court finds a person guilty of an offence that is not Class 1 or Class 2, including Class 3 and Class 4 offences, it **may** make an order – therefore, all Class 3 and 4 offences or an offence that is not located in a schedule are discretionary

Section 11(3) the court *must be satisfied beyond reasonable doubt that the accused poses a risk to the sexual safety of one or more persons in the community* before they can grant a discretionary order

Section 11(6) if applying for an order, the prosecutor must make an application no later than 45 days after the sentence is imposed

Section 34 – Length of Reporting Period

Class and Number of offences	Reporting period
1x Class 2	8 years
2x Class 2	15 years
3x Class 2	Life
1x Class 1	15 years
1x Class 1 and 1 or more Class 2	Life

Section 34(4) - for the purposes of determining reporting periods:

- (a) if found guilty of a Class 3 offence, deemed to be a Class 1 offence
- (b) if found guilty of a Class 4 offence or any other offence, deemed to be a Class 2 offence

Class and Number of offences	Reporting period
1x Class 3 = 1x Class 1	15 years
1x Class 4 = 1x Class 2	8 years

Remember - 2 or more offences arising from the same incident are to be treated as a single offence.

Section 34(3) - Offences arise from the same incident only if they are committed within a single period of 24 hours and against the same person – s 5(1)

Prior convictions and/or findings of guilt are applicable when calculating reporting period as above

Section 35(2) – Reporting for Child Offenders

When the accused is a child, the reporting period is half the reporting period that would otherwise apply to the person under s 34 (or 7 ½ years in the case of a reporting period for life)

Note: all offences where the accused is a child are discretionary ss 11(2) and 11(2A)

Section 11(2B) – Applications for Child Offenders

If making an order under s 11(2A) (an offence including Class 3 or Class 4), for any period during which the person is a child, the court may –

- (a) exempt the person from any particular reporting obligation or
- (b) modify any particular reporting obligation

This section allows for the court to exempt or modify reporting conditions for child offenders e.g. the court may exempt a child offender from a reporting condition pursuant to s 14(1)(ea) so that they are not required to report child contact.

Sexual Exposure

Sexual Exposure is not located in any of the four schedules; however, the prosecutor may make an application and the order is discretionary.

Section 11(1) – allows you to make the application

if a court finds a person guilty of an offence that is not a Class 1 or Class 2 offence (including an offence that is a Class 3 or Class 4 offence), it may order that person comply with the reporting obligations

Reporting period deemed to be a Class 4 offence, as above Section 34(4)(b) 'or any other offence'

Note: the requirement in s 11(3) that the court may only make an order, if after taking into account any matter that it considers appropriate, it is satisfied, beyond reasonable doubt, that the person poses a risk to the sexual safety of one or more persons or of the community.